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IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **CAPTAIN G. SERRATO in his individual and official capacities as Commander, Dublin Area, California Highway Patrol.** Defendants.	4:26-cv-05953-ASK **DEFENDANT CAPTAIN G. SERRATO'S NOTICE OF MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES** Date: September 16, 2026 Time: 1:30 p.m. Courtroom: Judge: Magistrate Judge Honorable Ajay Krishnan. Trial Date: None Set Action Filed: July 21, 2026

NOTICE IS HEREBY GIVEN that on September 16, 2026, at 1:30 p.m., in the above-entitled Court, located at 1301 Clay Street, Oakland, California, Defendant Captain G. Serrato, in both his individual and official capacities ("Defendant") will and hereby does move this Court for an order dismissing Plaintiff's First Amended Complaint, with prejudice, and striking portions of the First Amended Complaint pursuant to Federal Rule of Civil Procedure